



CHAPTER cviii.

An Act to confirm a Provisional Order under the Salmon and Freshwater Fisheries Act 1907 relating to certain Rivers in the Administrative Counties of Dorset Wilts and Southampton and other waters. [4th August 1922.] A.D. 1922.

WHEREAS the Minister of Agriculture and Fisheries has made the Provisional Order set forth in the schedule hereto under the provisions of the Salmon and Freshwater Fisheries Act 1907 : 7 Edw. 7
c. 15.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Hampshire Rivers Fisheries Provisional Order Confirmation Act 1922. Short title.

SCHEDULE.

A.D. 1922. **HAMPSHIRE RIVERS FISHERIES PROVISIONAL
ORDER 1922.**

THE Minister of Agriculture and Fisheries by virtue and in exercise of the powers vested in him under the Salmon and Freshwater Fisheries Act 1907 with a view to the improvement and development of the salmon and freshwater fisheries in the area defined by this Order hereby makes the following Provisional Order for the regulation of such fisheries in that area :—

**DEFINITION OF FISHERY DISTRICT AND CONSTITUTION OF
BOARD OF CONSERVATORS.**

Definition of
area affected
by Order.

1.—(1) This Order applies to the area described in the First Schedule hereto and more particularly delineated in a map or maps sealed by the Minister of Agriculture and Fisheries (hereinafter referred to as “the Minister”) in relation to this Order and to all salmon and freshwater fisheries in such area.

(2) A copy or copies of the said map or maps certified under the Documentary Evidence Acts 1868 to 1895 shall be kept by the Board of Conservators hereby constituted at the office of the clerk of that Board and be open at all reasonable times to inspection free of charge by any person desiring inspection for any bonâ fide purpose and this right of inspection shall include a right to make copies of the map or maps or any part thereof.

(3) The area to which this Order applies as hereinbefore defined is in this Order referred to as “the Fishery District.”

Constitution
and incor-
poration of
Board of
Conser-
vators

2.—(1) For the purposes of this Order a Board of Conservators shall be constituted in manner hereinafter appearing as a body corporate under the name of “The Hampshire Rivers Board of Conservators” having perpetual succession and a common seal with power to make contracts and to sue and be sued in that name and such Board is in this Order referred to as “the Fishery Board.”

(2) The Fishery Board shall consist of the following members :—

(a)—

Seventeen members appointed by the council of the administrative county of Southampton;

Nine members appointed by the council of the administrative county of Dorset;

Nine members appointed by the council of the administrative county of Wiltshire;

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One member appointed by the council of the county borough of Southampton; A.D. 1922.

One member appointed by the council of the county borough of Bournemouth;

One member appointed by the council of the administrative county of the Isle of Wight:

Such members unless appointed for a definite period shall remain in office until resignation death or determination of their appointment by the council appointing them but any member may resign his appointment:

- (b) Fifteen members elected in manner provided by this Order by the persons who under this Order are entitled to vote for the election of members representative of private fisheries:
- (c) Members representative of public fisheries elected under and in accordance with sections 29 to 33 of the Salmon Fishery Act 1873 which sections shall apply with the necessary modifications and with the further modifications that after the year nineteen hundred and twenty-two the elections shall be triennial and the number of members to be elected shall be determined according to the average amount of licence duty paid in the year of election and the two preceding years and that for the sum of fifty pounds in section 29 the sum of thirty pounds shall be substituted:
- (d) Any person who is an owner or occupier of a private fishery or private fisheries assessed for the purpose of fishery contributions under this Order or assessed to the rate for the relief of the poor at a total yearly value of fifty pounds or more or is the owner of lands within the Fishery District of an annual value of not less than one hundred pounds having a frontage to any river or other waters frequented by salmon or trout of not less than one mile (counting in the case of lands having a frontage to both sides of any water the aggregate frontage) having the right to fish in the waters adjoining such frontage and having paid licence duty for fishing for salmon or trout within the Fishery District during the last preceding fishing season shall subject to the provisions of this subsection be entitled to act as an additional member of the Fishery Board Provided that in no case shall both the owner and occupier be entitled to act at the same time as additional members in respect of the same fishery or fisheries.

Where a person entitled to act as an additional member is an infant or a lunatic the guardian or committee of the estate as the case may be shall be entitled to act in the place of such person;

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A person entitled to act as an additional member may nominate by power of attorney an agent to act for him as a member and an agent so nominated shall be entitled so to act until the power is duly determined. A copy of every such nomination and notice of the determination of a nomination shall be sent as soon as may be by the owner making or determining the nomination to the clerk of the Fishery Board and an agent shall not be entitled to act until a copy of his nomination has been received by the clerk.

Where persons entitled to act as additional members are so entitled as joint tenants or tenants in common of a fishery or fisheries they shall act only by an agent nominated by them in manner hereinbefore provided who may be one of the persons by whom the nomination is made.

(3) Where an additional member is elected as a member representative of private fisheries he shall not be entitled to vote in each capacity on any question to be determined by the Fishery Board and for the purpose of a quorum shall be counted as one member but this provision shall not affect a nomination by any person entitled to act as an additional member of an agent to act for him as an additional member.

Election of
members re-
presentative
of private
fisheries.

3. The following rules shall be observed with respect to the election of members representative of private fisheries :—

(1) The electors shall be the owners of private fisheries assessed for the purposes of fishery contributions under this Order who on the first day of December in any year of election are entered in the register of assessments and have then paid the fishery contributions (if any) due from them :

(2) Each elector shall be entitled to vote according to the following scale :—

If the fishery or fisheries in respect of which he is entitled to vote is or are assessed for the purposes of this Order at the yearly value of twenty-five pounds or less he shall have one vote for each member to be elected and if the assessment exceeds twenty-five pounds he shall have one additional vote for each such member in respect of each additional twenty-five pounds :

Provided that this scale may from time to time be varied by an order made by the Fishery Board and confirmed by the Minister after publication thereof in such manner as the Minister shall direct :

(3) An elector may give all his votes to any one of the persons nominated or may distribute them among such of the

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persons nominated not exceeding the number to be elected as he shall think fit : A.D. 1922.

- (4) The nomination and election shall be in accordance with the regulations set forth in the Second Schedule to this Order.

4. The term of office of an elected member of the Fishery Board shall be three years and on the appointed day in each third year the elected members shall go out of office and their places shall be filled by the newly elected members Any member going out of office shall be eligible for re-election. Term of office of elected members.

ASSESSMENTS AND FINANCIAL PROVISIONS.

5. For defraying expenses incurred in carrying into effect this Order and the Salmon and Freshwater Fisheries Acts 1861 to 1921 or any Act amending the same the Fishery Board may impose collect and recover contributions to be paid by the owners of the whole of the fisheries in the Fishery District liable to be assessed and such contributions shall be apportioned on the several owners in proportion to the assessed value of their fisheries : Imposition collection and recovery of contributions assessed on private fisheries.

Provided that except with the previous consent of the Minister the Fishery Board shall not incur expenses or liabilities which will involve the imposition of a contribution in any financial year of more than two shillings in respect of every pound of the total assessed yearly value of the fisheries liable to be assessed :

Provided also that no order imposing a contribution shall be made at any meeting unless notice of an intention to impose a contribution at such meeting shall have been given in the notice convening the meeting which notice shall be issued one fortnight at least before the date of the meeting and unless there are nine members present at the meeting.

6. Subject to the provisions of this Order the fisheries liable to be assessed shall be all private fisheries for salmon or trout in the Fishery District which are of the yearly value of five pounds or upwards Provided that the Fishery Board may by order made in the manner hereby prescribed for making an order imposing a contribution exempt from assessment for such period not exceeding three years as is stated in the order the fisheries in any part of the Fishery District specified in the order Provided also that the fisheries in any reservoir or other waters in the Fishery District which form part of the water undertaking of a water authority shall while owned by the water authority be exempt from assessment unless and until revenue is derived from the fisheries by the water authority and that the fisheries in any river or portion of a river within the Fishery District other than (a) the Stour below Canford Mill in the county of Dorset (b) the Fisheries liable to be assessed.

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A.D. 1922. Avon below Bicton Mill and the weir of the same name immediately above the said mill in the county of Southampton (c) the Test and (d) the Itchen shall in any case be exempt from assessment unless and until the previous consent in writing of the owners and occupiers of two-thirds at least in value of the fisheries in such river or portion of a river shall be given to such assessment.

Yearly value
for purposes
of assess-
ment.

7. The yearly value of a fishery for salmon and trout or either of them shall be the rent at which the same might reasonably be expected to let from year to year free of all usual tenants' rates and taxes and tithe rentcharge (if any) and deducting therefrom the probable average annual cost of the repairs and other expenses (if any) necessary to maintain the fishery in a state to command such rent. Provided that where a fishery is separately rated to the relief of the poor the rateable value as ascertained for such purpose shall for the purposes of this Order be deemed *prima facie* to be the yearly value of the fishery for salmon and trout or either of them.

Assessment
committee.

8.—(1) The Fishery Board shall appoint an assessment committee of not less than seven members of the Board of whom five shall form a quorum and such committee shall cause the yearly value of every fishery which appears to them to be liable to be assessed to be determined either by agreement with the owner thereof or in default of such agreement then in accordance with the provisions of this Order in manner provided by this section.

(2) If the assessment committee and the owner of a fishery fail to agree as to the yearly value of the fishery the committee may provisionally assess the yearly value of a fishery at such amount as they think reasonable and notify such provisional assessment by registered post to the reputed owner of the fishery by a notice in the form set forth in the Third Schedule hereto. If no objection to such provisional assessment is received by the clerk of the assessment committee within fourteen days after the date on which the notice was posted the yearly value of the fishery shall for the purposes of this Order be deemed to have been determined by agreement at the amount stated in the notice and the person to whom the notice was sent shall be entered in the register of assessments as the owner of the fishery. If objection is duly made to such provisional assessment and the assessment committee and the owner of the fishery fail to agree as to the yearly value of the fishery the yearly value may be determined by a single arbitrator appointed in default of agreement on the application of either party by the Minister under and in accordance with the provisions of the Arbitration Act 1889 or any statutory modification of that Act.

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(3) A clerk may be appointed by the assessment committee but in the absence of such appointment the clerk of the Fishery Board shall be the clerk of the committee. A.D. 1922.

(4) A member of an assessment committee shall not act as such in relation to a fishery if he is owner or occupier of the fishery or the agent of the owner or occupier.

9.—(1) The yearly value of a fishery when determined shall if amounting to five pounds or upwards be entered by the clerk of the Fishery Board in the register of assessments with a description of the fishery and the name and address of the owner or reputed owner thereof. The clerk of the Fishery Board may upon the application of any person claiming to be the owner of a fishery entered in such register and upon such evidence of ownership as appears to him to be sufficient insert the name and address of the applicant in the register as the owner of the fishery in the place of any person so entered as owner thereof. Register of assessments.

(2) The register of assessments shall be kept at the office of the clerk of the Fishery Board and be open to inspection free of charge by any person bonâ fide claiming to be an owner of a fishery registered or liable to be registered therein or by the agent of an owner or by any person liable under any agreement to pay the contributions imposed under this Order on any such fishery and this right of inspection shall include a right to make copies of entries in the register.

10.—(1) On the date determined by the Fishery Board every contribution shall be payable by the owners of the fisheries assessed to the collector appointed by the Fishery Board to receive the same. Provided that if the collector is unable to ascertain the owner of any fishery or if the owner of a fishery makes default in paying the amount due from him the amount may be recovered by the collector as a debt from the occupier of the fishery and the occupier shall (subject to and so far as may be consistent with any agreement between the owner and occupier) be entitled to deduct from the rent of the fishery (if any) payable by him any sum so paid on behalf of the owner thereof or recover the same from the owner as a debt : Recovery of contributions

Provided that nothing in this section shall prejudice or affect any right or liability under any existing or future contract of tenancy or agreement.

(2) Notice of demand for payment of a contribution in the form set forth in the Third Schedule to this Order shall be sent by post to the persons entered in the register of assessments as owners or reputed owners of fisheries and in any proceedings for the recovery of a contribution a certificate in the form set forth in such Schedule purporting to be signed by the clerk of the Fishery Board shall be sufficient evidence of the facts therein

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A.D. 1922. — stated and unless the contrary is proved the person entered in the register of assessments as owner or reputed owner of a fishery shall for the purpose of any such proceedings be deemed to be the owner of the fishery.

Apportion-
ment &c. of
assessments. 11.—(1) The assessment committee shall on the application of any person claiming to be the owner of a fishery liable to be assessed under this Order proceed as soon as is practicable to—

- (i) determine the yearly value of the fishery in the manner hereinbefore provided if it has not been determined either separately or in one assessment with another fishery; or
- (ii) apportion the assessed yearly value between the fishery of the applicant and any other fishery included in the same assessment; or
- (iii) re-determine the yearly value of the fishery in the manner hereinbefore provided.

(2) In the case of apportionment notice of the application shall be given to the owner of any other fishery included in the same assessment and the committee shall apportion the yearly value between the fisheries but the owner of any fishery may by notice in writing delivered or sent by post to the clerk of the Fishery Board within seven days after receipt of notification of the apportionment require the apportionment to be made by a valuer appointed by the Minister and the apportionment shall thereupon be so made. The remuneration of the valuer shall be fixed by the Minister and be paid by such one of the owners of the fisheries or by such owners in such shares as the valuer shall direct.

(3) The yearly value of a fishery may be re-determined from time to time without an application by the owner of a fishery. Provided that no re-determination shall be made until after the expiration of three years from the date of the previous determination except with the consent of the Fishery Board and the owner of the fishery unless by the making or revocation of a byelaw the yearly value thereof is increased or diminished.

Powers of
Fishery
Board as
to expen-
diture.

12. Subject to the provisions of this Order the Fishery Board may expend any moneys in their hands on any matter they may think conducive to the maintenance improvement or development of the fisheries within the Fishery District. Provided that the Fishery Board shall as far as practicable appropriate to the maintenance improvement or development of the fisheries for trout or char any moneys coming to their hands in respect of such fisheries after payment thereof of a fair proportion of the general expenses of administration of the Fishery Board.

Mortgages of
contribu-
tions.

13. Section 28 of the Salmon Fishery Act 1865 shall extend to mortgages of contributions authorised to be imposed under this Order.

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14.—(1) Subject as hereinafter provided the accounts of the Fishery Board shall be balanced in each year to the thirty-first day of December and shall forthwith be audited by some person appointed by the Minister whose remuneration shall be approved by the Minister and paid by the Fishery Board. A copy of the audited accounts with the report (if any) of the auditor thereon shall as soon as possible be sent to the Minister by the Fishery Board.

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Audit

(2) The first audit shall extend to the accounts from the appointed day to the thirty-first day of December nineteen hundred and twenty-three.

RETURNS BY PERSONS TAKING FISH IN THE DISTRICT.

15. The Fishery Board may as regards salmon require returns to be made and sent to the Fishery Board by every person taking such fish within the Fishery District within one month after the receipt by such person of a form of return sent to him by the Fishery Board by registered post and if any person to whom such a form is so sent wilfully or negligently fail to make and send to the Fishery Board a full and true return in the form so provided he shall be liable on summary conviction to a penalty not exceeding five pounds. If any person in making a return shall require that the particulars comprised in his return shall not be disclosed the Fishery Board shall not disclose them except to the Minister for the purposes hereinafter mentioned or for the purposes of a prosecution under this provision or for determining the value of a fishery for the purposes of this Order and except that in compiling any report or summary of statistics the Fishery Board or the Minister may include such particulars so arranged that no person will be able to identify any particulars so published as particulars relating to the person making the return or his business.

Power for
Fishery
Board
to require
fishery re-
turns.

MODIFICATIONS IN RELATION TO FISHERIES IN THE FISHERY
DISTRICT OF CERTAIN PROVISIONS OF THE SALMON AND
FRESHWATER FISHERIES ACTS.

16. The powers conferred by the Salmon and Freshwater Fisheries Acts 1861 to 1921 on boards of conservators of purchasing for the purpose of removal fishing weirs and other obstructions dams or fixed engines shall in relation to the Fishery Board extend to the purchase by agreement of any dam fishing weir fishing mill dam fixed engine or other artificial obstruction or any fishery for the purpose of enabling the Fishery Board to work the same by themselves or their lessees where such purchase and working will in the opinion of the Fishery Board be for the benefit of the fisheries within the Fishery District and the Fishery Board may for such purposes by agreement hire any such obstruction or purchase or hire any fishery.

Modification
of Salmon
Fishery Act
1865 s. 27 as
extended by
Salmon Fish-
ery Act 1873
s. 49.

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Modification
of Salmon
Fishery Act
1865 s. 34
4).

17. There shall be paid for a general licence such sum as shall be agreed by the Fishery Board and the person entitled to the licence and be approved by the Minister or as shall on the application of either party be determined by the Minister having regard to the extent and productiveness of the fishery and to any conditions attached to the licence with respect to the nature of the instruments or devices to be used for catching fish or otherwise which shall be agreed upon by the said parties or in default of agreement be imposed by the Minister.

Modification
of Salmon
Fishery Act
1865 s. 34
(5).

18. The Fishery Board may by order confirmed by the Minister limit the number of licences to be issued in any year for fishing for salmon in public or common waters within the whole or any part of the Fishery District with any instrument or device specified in the order and provide where the applications exceed the number of licences that may be issued for the selection of the applicants to whom licences shall be issued. Before confirming an order under this section the Minister shall direct the order to be published in such manner as the Minister shall think desirable by and at the expense of the Fishery Board and shall take into consideration any objections to the order which may be sent to the Minister within the time prescribed by the notice of publication.

Duration of
licences.

19.—(1) A scale of licence duties fixed by the Fishery Board may provide for licences available only for part of a year.

(2) A scale of licence duties or alteration or variation of any ~~scale shall not be approved by the Minister unless one month's~~ notice of intention to apply for approval shall have been given by advertisement in such manner as the Minister may direct and such provision shall be substituted for any provision of the Salmon and Freshwater Fisheries Acts 1861 to 1921 which regulates the procedure in the case of fixing altering or varying a scale of licence duties or the notification of any scale so fixed altered or varied. Provided that no licence duty shall come into operation before the commencement of the next fishing season after the date of the approval of the licence duty.

Additional
powers of
making bye-
laws.

20.—(1) Subject to the provisions of this Order the Fishery Board in addition to any power conferred by the Salmon and Freshwater Fisheries Acts 1861 to 1921 shall have power with a view to the improvement and development of the salmon and trout fisheries in the Fishery District to make byelaws to be made confirmed and published in the same manner as byelaws authorised by section 39 of the Salmon Fishery Act 1873 for all or any of the following purposes :—

- (i) To prohibit or regulate the use for taking salmon of nets or any specified kind of net (not being a fixed engine) in such waters lying within the Fishery District as may be defined by the byelaw ;

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- (ii) To prohibit or regulate fishing within such distance as may be prescribed by the byelaw above or below any natural or artificial obstruction to the passage of salmon;
- (iii) To determine the nets and other instruments (not being fixed engines) which may lawfully be employed for taking salmon trout or char in the Fishery District;
- (iv) To prohibit or regulate the carrying in a boat or vessel while being used in fishing for salmon of any net which is not licensed and has not attached thereto the mark label or number (if any) prescribed by a byelaw made by the Fishery Board;
- (v) To extend the weekly close season to a period not exceeding sixty hours;
- (vi) To determine the length size and description of nets and the manner of using the same (not being fixed engines) for taking salmon;
- (vii) To prohibit or regulate during such part of the year as may be specified in the byelaw the use with rod and line of any lure bait or mode of fishing specified in the byelaw;
- (viii) To prohibit or regulate the use of a gaff or other instrument as auxiliary to angling with rod and line;
- (ix) To exempt any waters within the Fishery District from the operation of section 15 of the Salmon Fishery Act 1873 and to regulate the use of baskets nets traps and devices for catching eels lamperns or lampreys;
- (x) To exempt any specified kind of non-migratory trout (other than *salmo fario*) from the provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1921 which regulate the period during which it shall be illegal to take or kill trout and to prohibit fishing for catching or killing or attempting to catch or kill such exempted kind of trout between the dates specified in the byelaw;
- (xi) To prohibit the taking of any specified kind of fish of a less size than that specified in the byelaw;
- (xii) To prohibit the introduction into any waters within the Fishery District with such exceptions as may be prescribed by the byelaw of any specified kind of fish;
- (xiii) To impose a penalty not exceeding five pounds for each offence against a byelaw;

and Part VII. and section 62 of the Salmon Fishery Act 1873 shall apply to any byelaw made under this provision.

(2) If at any time before the expiration of twelve months after the confirmation of any byelaw made by the Fishery

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Limit on
licence duties
removed.

21. The provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1921 which limit the amount of duty payable for a licence shall not apply within the Fishery District but so that the amount of duty shall be approved by the Minister as in the said Acts provided.

Definition of
boundary
between
inland and
tidal waters.

22. The Fishery Board may with the approval of the Minister define for the purposes of subsection (12) of section 39 of the Salmon Fishery Act 1873 the boundary between inland and tidal waters.

Special per-
mits for
taking fish
for stocking
&c.

23.—(1) The Fishery Board may by written permit authorise the use of any instrument specified in the permit for the purpose of taking fish for stocking or breeding purposes or for scientific purposes or for the destruction of any specified kind of fish and such permit may contain such conditions as the Fishery Board think fit and in such case any provision in the Salmon and Freshwater Fisheries Acts 1861 to 1921 or this Order or any byelaw made by the Fishery Board penalising the use of such instrument or its use without a licence or the catching or killing of fish at particular times or places shall not apply to the use of the instrument by the person to whom the permit is granted for the purposes and subject to the conditions specified in the permit or to the catching or killing of fish by such use.

(2) A permit granted to a person under this provision shall not be construed as authorising him to fish in any waters in which he is not otherwise entitled to fish.

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(3) Any person to whom the Fishery Board shall refuse to grant a permit may appeal against such refusal to the Minister whose decision shall be final and if the Minister so directs the Fishery Board shall grant a permit in accordance with his directions. A.D. 1922.

24. The provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1921 relating to powers of water bailiffs shall in the case of a water bailiff appointed by the Fishery Board extend to the removal of diseased fish from any waters in the Fishery District and to the disposal of the same as the Fishery Board direct. Removal of diseased fish.

25. The Minister may by written permit available for a period specified in the permit exempt any sluices from the provisions of section 26 of the Salmon Fishery Act 1861 as amended by section 53 of the Salmon Fishery Act 1873 on such conditions (if any) as may be specified in the permit. Modification of Salmon Fishery Act 1861 s. 26.

26. In any case in which by the provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1921 a fish pass is required to be attached to or made as part of the structure of any dam weir or other obstruction to the passage of salmon the Minister may on the recommendation of the Fishery Board by written permit exempt such dam weir or obstruction from the operation of such provisions either entirely or for such period and subject to such conditions as may be specified in the permit or so long as there is maintained in an efficient state a fish pass not attached to or forming part of the structure of the dam weir or obstruction but of such form and dimensions and in such position as in the opinion of the Minister are efficient to facilitate the passage of salmon past such dam weir or obstruction and are approved accordingly under the seal of the Minister. Modification of Salmon Fishery Act 1861 ss. 12 and 25 and Salmon Fishery Act 1873 ss. 17 and 46.

27. The power of erecting a fish pass attached to a dam conferred by section 23 of the Salmon Fishery Act 1861 as amended by the Salmon Fishery Act 1873 shall extend to the erection and maintenance of a fish pass adjacent to but not attached to the dam. Modification of Salmon Fishery Act 1861 s. 23.

28. A byelaw made by the Fishery Board may be confirmed by the Minister either without modification or with such modification as may be assented to by the Fishery Board and in the latter case notice of the proposed modification shall be given by the Fishery Board by advertisement or otherwise in accordance with the directions (if any) of the Minister in that behalf. Confirmation of byelaws.

29. A copy of any byelaw made by the Fishery Board purporting to be signed by the clerk of the Fishery Board and certified by him to be a true copy and to have been duly confirmed shall be evidence until the contrary is proved in all legal proceedings of the due making confirmation publication and existence of such byelaws without further or other proof. Proof of byelaws.

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Modification
of law as to
gratings.

30. Sections 58 and 60 of the Salmon Fishery Act 1873 shall apply within the Fishery District with the substitution of "salmon or trout" for "salmon" the addition of the words "or authorize" after the word "adopt" and as if the words "or device" were added after the word "grating" in section 58 and as if the words "from the nature of the channel" were omitted from section 60.

Modification
of Salmon
Fishery Act
1865 s. 57.

31. Section 57 of the Salmon Fishery Act 1865 shall apply within the Fishery District to any offence under the Salmon and Freshwater Fisheries Acts 1861 to 1921 or this Order or any byelaw made under the authority of the said Acts or Order but it shall not be imperative to inflict a greater penalty than fifty shillings for a second offence or five pounds for a third offence.

Provision for
measurement
of mesh of
nets.

32. For the purposes of any provision in the Salmon and Freshwater Fisheries Acts 1861 to 1921 or this Order or any byelaw made thereunder which prescribes the minimum size of mesh of nets that may lawfully be used within the Fishery District it shall be sufficient evidence of the mesh being of less than the minimum size if it is proved that a gauge certified by the Board of Trade to be of such size as to correspond with the size prescribed as a minimum by the statutory provision Order or byelaw would not pass through the mesh without pressure when the net is wet.

Application
of provisions
of Salmon
and Fresh-
water Fisher-
ies Acts.

33.—(1) The provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1921 with respect to boards of conservators conservators and fishery districts except as herein expressly provided and so far as they are consistent with the provisions of this Order shall apply to the Fishery Board the members of the Board and the Fishery District as if such Board and District were formed under those Acts and as if the waters lying within the Fishery District were a river and subject to the provisions of this Order the Fishery Board shall as regards the Fishery District have all such powers and duties as may be exercised or discharged by a board of conservators constituted under the said Acts or any of them Provided that nothing in this Order shall be construed as authorising the Board to levy licence duty for fishing for any fish other than salmon trout and char.

(2) The provisions of the said Acts with respect to the formation alteration combination and dissolution of fishery districts and the sections or parts of sections of the said Acts mentioned in the Fourth Schedule to this Order shall not apply to the Fishery Board or within the Fishery District.

For protec-
tion of public
water under-
takings.

34.—(1) Nothing in the Salmon and Freshwater Fisheries Acts 1861 to 1921 or this Order or any byelaw made by the Fishery Board penalising the use of any instrument or its use without a licence or prohibiting or restricting the catching or killing of or

the attempting to catch or kill any kind of fish shall apply in relation to the removal of fish from any reservoir or other waters in the Fishery district which form part of the water undertaking of a local authority or water board by their direction for the purposes of their undertaking : A.D. 1922.

Provided that so far as is practicable all trout or salmon removed under this provision are returned alive to waters within the Fishery District that their removal if so required by the Fishery Board is superintended by a water bailiff appointed by the Fishery Board and that reasonable notice is given to the Fishery Board of the time and place of the intended removal.

(2) An officer of the Fishery Board shall not under the powers conferred by the said Acts or this Order have any power to interfere with any lands filter beds machinery appliances or works which form part of the water undertaking of any local authority or water board.

(3) The Fishery Board shall on the application of a water authority being the owner of any reservoir or other waters in the Fishery District appoint as a water bailiff to be paid by the water authority any person nominated by the water authority but the powers of any water bailiff so appointed shall unless otherwise directed by the Fishery Board extend only to the reservoirs or other waters forming part of the water undertaking of the water authority by whom he is nominated and to the protection of the fisheries therein Provided that any appointment made by the Fishery Board under this subsection may at any time be revoked by them for any cause which they may deem sufficient but without prejudice to the right to require the Fishery Board to appoint another person.

35.--(1) In this Order unless the context otherwise requires the following terms have the meaning hereinafter respectively assigned to them (that is to say) :— Definitions.

“ Owner ” means the person for the time being receiving the rackrent of a fishery whether on his own account or as trustee or attorney for any other person or who would so receive the same if the fishery were let at a rackrent ;

“ Year of election ” means the year nineteen hundred and twenty-two or the third year after the preceding year of election as the context requires ;

“ Appointed day ” means the date appointed by the Minister as that on which elected members of the Fishery Board shall come into office ;

“ Water authority ” means any local authority board or company constituted by general or local Act of Parliament or by Provisional Order confirmed by Parliament and having power to supply water to any town or place ;

Words importing the masculine gender shall include females ;
Other expressions have the same meaning as in the Salmon and Freshwater Fisheries Acts 1861 to 1921.

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(2) Any document purporting to be signed by one of several persons entitled as joint tenants or tenants in common of a fishery on behalf of himself and the other persons or to be signed by the clerk of any body corporate being an owner of a fishery on behalf of such body shall unless and until the contrary is proved be treated for the purposes of this Order as signed by all the persons entitled or by the body corporate as the case may be.

Crown
rights.

36. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Fishery Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

37. The Fishery Board shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Fishery Board shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Fishery Board and the amount of such costs and charges shall be a debt due from the Fishery Board to the Crown and shall be recoverable as a Crown debt or summarily.

Short title.

38. This Order may be cited as the Hampshire Rivers Fisheries Provisional Order 1922.

TRANSITORY PROVISIONS.

Abolition
of existing
Board of

39.—(1) The existing Board of Conservators of the Hampshire Rivers Fishery District shall be abolished on the appointed day and all property acquired and all liabilities incurred by

that Board shall as from that day by virtue of this Order be transferred to and vested in the Fishery Board and the Fishery Board shall to all intents and purposes represent and be deemed a continuation of the existing Board and the clerk and all other officers of that Board shall become the officers of the Fishery Board and upon the same terms and conditions as heretofore Any bye-law scale of licence duties notice or instrument made fixed given or executed by the existing Board shall upon such abolition take effect as if it had been made fixed given or executed by the Fishery Board but shall not in any other respect be altered or affected by this Order The existing Board shall as soon as practicable after the confirmation of this Order carry into effect the provisions of this Order as to assessment of the private fisheries in the Fishery District and for this purpose the provisions of this Order relating to such assessment (including the power to exempt from assessment for a specified period) shall apply to the existing Board and to the clerk of that Board Notice of assessment of fisheries shall be given as soon as practicable by the existing Board by advertisement in two successive issues of some newspaper or newspapers circulating in the Fishery District in the form set forth in the Third Schedule hereto The time and place of the first meeting of the Fishery Board shall be fixed by the existing Board and for the purposes of the nomination and election of the first elected members of the Fishery Board the existing Board shall in the application of this Order be substituted for the Fishery Board.

A.D. 1922.

—
 Conservators
 and other
 transitory
 provisions.

(2) For the purposes of the first election under section 3 of this Order the Minister may by order substitute for the first day of December and twenty-first day of December such days as the Minister shall determine.

(3) The Fishery Board shall come into office on the appointed day and the members of the existing Board shall remain in office until that date.

(4) The costs incurred by the existing Board of Conservators in obtaining this Order and its confirmation by Parliament shall be paid by the existing Board or by the Fishery Board out of any funds in their hands not hereby appropriated for any other purpose.

In witness whereof the Minister of Agriculture
 and Fisheries has caused his Official Seal
 to be affixed this twenty-fourth day of May
 nineteen hundred and twenty-two. } (L.S.)

(Signed) HENRY G. MAURICE
 Fisheries Secretary
 Authorised by the Minister.

A.D. 1922.

SCHEDULES.

FIRST SCHEDULE.

AREA WITHIN WHICH THE ORDER APPLIES.

The area comprising (1) such parts of the administrative counties of Dorset Wiltshire and Southampton and the county boroughs of Bournemouth and Southampton as lie within the natural watershed of any river or stream which flows into the sea at any point between the southern extremity of the eastern boundary of the said county of Dorset and the west side of Stokes Bay Pier in the said county of Southampton but excluding the natural watersheds of such parts of rivers and streams and of the tributaries of such parts as lie above the undermentioned lines respectively viz. :—

1. In the rivers Fletch or Bartleywater and Keyhaven or Avonwater respectively lines drawn along the boundary of the New Forest :
2. In the river Lymington a line drawn along the east side of the bridge across the said river on the road from Brockenhurst to Lyndhurst :
3. In the river Beaulieu a line drawn along the east side of the bridge across the said river to the south of Ipley Farm :
4. In the river Test lines drawn—
 - (i) At Saddler's Mill Romsey along the southern face of the wall and arches at the head of the tail race and waste channel respectively ;
 - (ii) At Abbey Mill Romsey (a) along the eastern face of the arches at the head of the tail race (b) along the toe of the apron of the hatchway in the bye-channel to the north of the said mill (c) along the southern face of the wall of the turbine house (d) along the southern wall of the building known as the cutting house and (e) along the toe of the apron of the hatchway at the head of the channel known as the west boundary ditch to the northwestward of the said mill respectively ;
 - (iii) At Sutton's Mill Romsey across the tail race and waste channel respectively where they join the said river Test below the first bridge to the south-eastward of the Abbey Mill ;
 - (iv) At the Town Mill Romsey along the southern and western faces of the arches at the head of the tail race and the waste channel respectively :

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5. In the river Itchen lines drawn—

(i) At Barton Mill Bishop Stoke (a) along the eastern face of the arches at the head of the tail race and (b) along the southern face of the arches of the first brick footbridge over the diversion channel to the northward of the said mill respectively;

(ii) At Stoke Lock Bishop Stoke along the toe of the apron of the hatchway;

(iii) At Bishop Stoke Mill (a) along the southern face of the arches at the head of the tail race (b) along the eastern face of the arches of the bridge across the irrigation channel to the northeastward of the said mill and (c) along the toe of the apron of the hatchway at the head of the bye-channel to the northward of the said mill respectively:

6. In the river Meon a line drawn along the south side of the bridge across the said river known as Longwater Bridge situate to the south of Great Fontley Farm

and (2) such parts of the sea coast and territorial waters as lie (a) within lines drawn respectively true southeast from the southern extremity of the eastern boundary of the said county of Dorset and true north and south through the Needles Lighthouse in the administrative county of the Isle of Wight and (b) within lines drawn respectively true north from the said lighthouse and along the west side of Stokes Bay Pier in the said county of Southampton thence continued straight to the seaward extremity of Ryde Pier in the said county of the Isle of Wight and thence along the west side of such pier together with the coast of such last mentioned county lying between the said lighthouse and Ryde Pier.

SECOND SCHEDULE.

REGULATIONS AS TO NOMINATION AND ELECTION OF MEMBERS REPRESENTATIVE OF PRIVATE FISHERIES.

The returning officer shall be the chairman of the Fishery Board or a person appointed by him in writing for the purpose. Nominations of candidates for election signed by the candidate in evidence of his willingness to act and by two electors may be sent to the returning officer so as to be delivered at his office not later than midnight on the first day of December in the year of election. If the number of persons nominated shall be the same as or less than the number of persons to be elected such persons shall be deemed to be duly elected. If the number of persons nominated exceed the number to be elected the returning officer shall on or before the following twenty-first day of December

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A.D. 1922. — send by post to each elector at the address stated in the register of assessments a voting paper in the form contained in the Second Schedule to the Salmon Fishery Act 1873 containing in alphabetical order the names of the candidates and specifying a day not less than ten days nor more than fifteen days from the date of sending such voting paper on or before which such voting paper is to be returned to him.

Paragraphs (7) and (10)–(16) of section 30 of the Salmon Fishery Act 1873 and sections 31 to 33 of that Act shall apply to the election of members representative of private fisheries as if the same were incorporated herein.

THIRD SCHEDULE.

FORMS.

FORM I.

Notice of Assessment of Fisheries.

Hampshire Rivers Fishery District.

Notice is hereby given that an assessment committee has been appointed by the Board of Conservators of the Hampshire Rivers Fishery District to assess the yearly value of all private fisheries for salmon or trout or either of them in the Hampshire Rivers Fishery District constituted by the Hampshire Rivers Fisheries Provisional Order 1922 which are of the yearly value of five pounds or upwards and are liable to be assessed.

At the election of members representative of private fisheries the electors will be the owners of such of the above-mentioned fisheries as have been duly assessed and entered in the register of assessments and owners should immediately communicate with the clerk of the Board. [*Name and Address.*]

FORM II.

Notice of Provisional Assessment.

Salmon and Freshwater Fisheries Acts.

Hampshire Rivers Fishery District.

To

Notice is hereby given that the assessment committee appointed under the Hampshire Rivers Fisheries Provisional Order 1922 have provisionally assessed the yearly value of the fishery described in the schedule to this notice at £ s. d.

If no objection to such provisional assessment by or on your behalf is received by the undersigned within fourteen days after

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the date of this notice the yearly value of the fishery will for the purposes of the said Order be deemed to have been determined by agreement at the amount above stated and in default of any objection you will be entered in the register of assessments as the owner of the fishery. A.D. 1922.

If notice of objection is duly given you will be entitled to have the value determined in default of agreement by arbitration.

(Signed) A.B.
Clerk of the Assessment Committee.

Schedule to Notice.

Description of Fishery as proposed to be entered in Register of Assessments.

[Date on which the Notice is sent.]

FORM III.

Notice of Demand for payment of Contribution.

Salmon and Freshwater Fisheries Acts.

Hampshire Rivers Fishery District.

Notice is hereby given that the Hampshire Rivers Board of Conservators have imposed a contribution to be paid by the owners of the whole of the fisheries in the above-mentioned District liable to be assessed and have directed that the same shall be payable on the _____ day of _____ to _____ of _____ the collector appointed to receive the same.

The amount payable in respect of such contribution by the owner of the fishery described in the schedule to this notice is £ ____ s. ____ d. which is hereby required to be paid to the said collector on or before the above-mentioned date.

(Signed) A.B.
Clerk of the Hampshire Rivers
Board of Conservators.

Dated 19 .

Schedule to Notice.

Description of Fishery as entered in Register of Assessments.

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FORM IV.

Certificate for Recovery of Contribution.

Salmon and Freshwater Fisheries Acts.

Hampshire Rivers Fishery District.

I *A.B.* hereby certify that the amount of £ *s.* *d.* is payable by the owner of the fishery described in the schedule to this certificate in respect of a contribution duly imposed by the Hampshire Rivers Board of Conservators to
of the collector appointed by that Board to receive the same and that the person entered in the register of assessments as owner of such fishery is of

(Signed)

 $A:B.$

Clerk of the Hampshire Rivers
Board of Conservators.

Schedule to Certificate.

Description of Fishery as entered in Register of Assessments.

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FOURTH SCHEDULE.

PROVISIONS WHICH BY THIS ORDER ARE DECLARED TO BE
 INAPPLICABLE TO THE FISHERY BOARD OR WITHIN THE
 FISHERY DISTRICT.

Act.	Section.	Subject.
Salmon Fishery Act 1865.	Section 15 - -	Tenure of office by Conservators.
	Section 16 - -	Notice of appointment of Conservators.
	Section 29 - -	Audit of accounts.
	Section 34 (8) - -	Notice on first appointment of Conservators.
Salmon Fishery Act 1873.	In sections 35 and 36 the words "From "and after a time "to be appointed "as aforesaid in a "fishery district."	
	Section 27 - -	Provision for persons under disability.
	In section 39 (2) the words "Such week- "ly close time in no "case to exceed "forty-eight hours."	
	Section 39 (3) - -	Determination of length &c. of salmon nets.
	Section 45 - -	Proof of byelaws.

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